

ELIZABETH II



1978 CHAPTER xvii

An Act to confer powers on the Vale of Glamorgan Borough Council as the harbour authority for Barry Harbour; for the provision of facilities within the harbour; for the regulation of navigation therein; and for connected purposes. [31st July 1978]

WHEREAS—

(1) The Barry Harbour Company was incorporated by The Barry Harbour Act 1866 and by that Act was empowered to execute works for converting the estuary of Barry Island in what is now the county of South Glamorgan into a tidal harbour whose limits embraced (inter alia) those of the harbour: 1866 c. liii

(2) The Barry Dock and Railways Company (hereafter called “the company”) was incorporated by the Barry Dock and Railways Act 1884: 1884 c. cclvii.

(3) The said Act of 1884 and the Barry Dock and Railways Act 1886 conferred certain functions on the company: 1886 c. xxxix.

(4) The name of the company was changed to the Barry Railway Company by the Barry Dock and Railways Act 1891: 1891 c. clxxxiv.

(5) Further functions were conferred on the company by the Barry Railway Act 1894 and the Barry Railway Act 1896: 1894 c. clxvii
1896 c. cxcii

(6) The undertaking and functions of the company were subsequently transferred to the Great Western Railway Company and latterly to the British Transport Commission:

1956 c. xlviii.
1972 c. 70.

(7) The rights and interests of the British Transport Commission in a portion of the harbour and the Commission's undertaking relating to that portion of the harbour were transferred to the mayor, aldermen and burgesses of the borough of Barry by the Barry Corporation (Barry Harbour) Act 1956 and subsequently, by virtue of the Local Government Act 1972, were transferred to the Council and remain vested in them:

(8) The said Acts of 1884, 1886, 1891, 1894 and 1896, so far as they relate to the harbour, are spent or obsolete and should be repealed:

(9) The harbour has fallen into disuse and it is expedient that powers be conferred on the Council to enable them to re-open the harbour and provide facilities and regulate navigation therein as in this Act provided:

(10) It is expedient that the other provisions of this Act be enacted:

(11) The objects of this Act cannot be attained without the authority of Parliament:

(12) In relation to the promotion of the Bill for this Act the requirements of section 239 of the Local Government Act 1972 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

PART I

PRELIMINARY

- Short title. 1. This Act may be cited as the Vale of Glamorgan (Barry Harbour) Act 1978.
- Interpretation. 2. In this Act, unless the context otherwise requires—
 “the Council” means the Vale of Glamorgan Borough Council;
 “general direction” means such a direction as is referred to in section 26 (General directions to vessels) of this Act;
 “the harbour” means the area bounded by the limits referred to in section 23 (Limits of harbour) of this Act which limits are delineated by a dark blue line and coloured pink on the signed map and so far as the same is not within those limits also includes the harbour estate;

- “harbour estate” means the piers, wharves, quays, berths, roads, bridges, sheds and other works and conveniences, and the land, buildings and property of every description and of whatever nature, which are for the time being vested in, occupied or administered by the Council for the purposes of this Act;
- “harbour master” means the person appointed as such by the Council and includes any person authorised by the Council to act for or on behalf of the harbour master;
- “land” includes land covered by water and any interest or right in, to, or over or attaching to land;
- “level of high water” means the level of mean high-water springs;
- “signed map” means the map signed in quintuplicate by Mr. Bryant Godman Irvine, the chairman of the committee of the House of Commons to whom the Bill for this Act was referred, one copy of which map has been deposited in each of the following offices:—
- (a) the office of the Clerk of the Parliaments, House of Lords;
 - (b) the Private Bill Office of the House of Commons;
 - (c) the offices of the Council;
 - (d) the offices of the Department of the Environment;
 - (e) the offices of the Department of Trade;
- “special direction” means such a direction as is referred to in section 28 (Special directions to vessels) of this Act;
- “tidal work” means so much of any work authorised by this Act as is on, under or over tidal waters or tidal lands below the level of high water;
- “Trinity House” means the Corporation of Trinity House of Deptford Strond;
- “vehicle” means a vehicle of any description and includes a trailer, caravan or machine of any kind drawn or propelled along or over land whether by animal or mechanical power and includes a hovercraft within the meaning of the Hovercraft Act 1968 or any other 1968 c. 59. amphibious vehicle;
- “vessel” means a ship, boat or raft of any description and includes any other thing constructed or adapted for floating on or being submersed in water (whether permanently or temporarily); and includes a hovercraft within the meaning of the Hovercraft Act 1968 or any other amphibious vehicle or a seaplane.

PART I
—*cont.*
Incorporation
of
enactments.
1847 c. 27.

3. The Harbours, Docks and Piers Clauses Act 1847 (except sections 6 to 22, 24 to 27, 31 and 32, 42, 43, 48 to 50, 84 to 90, 95 to 98 and 101), so far as applicable to the purposes and not inconsistent with the provisions of this Act, is hereby incorporated with this Act:

Provided that in construing the said Act as so incorporated—

- (i) the expression “the harbour, dock or pier” shall mean the harbour, the expression “the special Act” shall mean this Act, and the expression “the undertakers” shall mean the Council;
- (ii) section 23 shall be read and have effect as if the words “cranes, machines” and the words “provided that no such lease be granted for a longer term than three years” were omitted;
- (iii) sections 38, 39, 59, 60, 61 and 64 shall be read and have effect as if for the words “ten pounds” there were substituted the words “one hundred pounds”;
- (iv) sections 53 and 55 shall be read and have effect as if for the words “twenty pounds” there were substituted the words “two hundred pounds”;
- (v) sections 54, 62 and 67 shall be read and have effect as if for the words “five pounds” there were substituted the words “fifty pounds”;
- (vi) section 63 shall be read and have effect as if the words “liable to” to the end of the section were deleted and there were substituted therefor the words “be guilty of an offence and shall be liable on summary conviction to a fine not exceeding fifty pounds”;
- (vii) section 69 shall be read and have effect as if the words “shall forfeit” to the end of the section were deleted and there were substituted therefor the words “shall be liable on summary conviction to a fine not exceeding one hundred pounds”;
- (viii) section 75 shall be read and have effect as if for the words “fifty pounds” there were substituted the words “five hundred pounds”.

PART II

FUNCTIONS FOR THE PROVISION OF HARBOUR AND RELATED FACILITIES

General
powers of
Council in
respect of
harbour.

4.—(1) The Council may, subject to the provisions of this Act, take such steps from time to time as they may consider necessary for the improvement, regulation, maintenance, management, marking or lighting of the harbour and the facilities afforded therein or in connection therewith.

(2) For those purposes, and without prejudice to the generality of the foregoing, the Council may—

PART II
—cont.

- (a) construct, demolish, reconstruct, maintain, alter, improve, enlarge or extend embankments, walls, footways, approaches, steps, landing places, pontoons, piers, quays, jetties, slips, wharves, groynes, sea defences, buoys, navigation marks, cranes, lights, beacons, sewers, drains, watercourses, gas and water pipes, apparatus for electric light and power, warehouses, offices, sheds and other works and facilities which may be found necessary to secure the purposes of this Act including the accommodation of vessels, vehicles or other traffic or for the protection of the harbour;
- (b) improve, regulate, maintain, manage, mark and light the harbour and, subject to the provisions of this Act, provide port facilities therein;
- (c) do all other things which in their opinion are expedient to facilitate the proper carrying on or development of the harbour.

(3) In subsection (2) (b) of this section “ port facilities ” means the regulating, maintaining, managing, marking or lighting of the harbour or any part thereof, the berthing, towing, moving or dry-docking of a vessel which is in, or is about to enter, or has recently left, the harbour, the loading or unloading of goods, or embarking or disembarking of passengers, in or from any such vessel, the lighterage or the sorting, weighing, warehousing or handling of goods in the harbour, and the movement of goods within the harbour.

5. Without prejudice to the provisions of section 4 (General powers of Council in respect of harbour) of this Act the Council may construct, demolish, reconstruct, maintain, alter, improve, enlarge, extend, mark, light and operate in the harbour such works for the provision of boating or marina facilities as they may consider requisite.

6.—(1) In case of injury to or destruction or decay of a tidal work or any part thereof the Council shall forthwith notify Trinity House and shall lay down such buoys, exhibit such lights and take such other steps for preventing danger to navigation as Trinity House shall from time to time direct.

(2) If the Council fail to notify Trinity House as required by this section or to comply in any respect with a direction given under this section they shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

PART II
—cont.Abatement of
works
abandoned
or decayed.

7.—(1) Where a tidal work is abandoned, or suffered to fall into decay, the Secretary of State may by notice in writing require the Council at their own expense either to repair and restore the work or any part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the Secretary of State thinks proper.

(2) Where a work vested in the Council and consisting partly of a tidal work and partly of works on or over land above the level of high water is abandoned or suffered to fall into decay and that part of the work on or over land above the level of high water is in such a condition as to interfere or to cause reasonable apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Secretary of State may include that part of the work, or any portion thereof, in any notice under this section.

(3) If, on the expiration of thirty days from the date when a notice under this section is served upon the Council, they have failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice and any expenditure incurred by him in so doing shall be recoverable from the Council.

Survey of
tidal works.

8. The Secretary of State may at any time if he deems it expedient order a survey and examination of a tidal work and any expenditure incurred by the Secretary of State in any such survey and examination shall be recoverable from the Council.

Permanent
lights on
tidal works.

9.—(1) After the completion of a tidal work the Council shall at the outer extremity thereof exhibit every night from sunset to sunrise such lights and take such other steps for the prevention of danger to navigation as Trinity House may from time to time direct.

(2) If the Council fail to comply in any respect with a direction given under this section they shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

Power to
provide, etc.,
vessels,
equipment,
etc.

10. The Council may provide, purchase, take on lease, hire and use such vessels (including dredgers, tugs, hoppers or barges), machinery, apparatus or equipment (including dredging appliances or apparatus) as they may think necessary for the carrying on of their undertaking in the harbour or otherwise effecting the purposes of this Act and may let the same on hire (with or without the services of their employees) for such sums and upon and subject to such terms and conditions as they may think fit or may sell or otherwise dispose of the same.

11. Subject to the provisions of section 33 (Crown rights) of this Act the Council may—

PART II
—cont.

(a) deepen, dredge, scour, excavate, or blast any rock in any part of the harbour or the approaches thereto to the extent necessary to secure a sufficient waterway for vessels using the harbour or approaching or leaving the same or otherwise for the purposes of their undertaking in the harbour; and

(b) sell or otherwise dispose of or remove or deposit all sand, mud and other materials dredged up or removed pursuant to this section as they think fit:

Power to secure sufficient waterway and sell materials.

Provided that the Council shall not without the consent of the British Railways Board (which consent shall not be unreasonably withheld) in the exercise of the powers of this section use explosives within a distance of 100 metres (measured in any direction) of any railway of the British Railways Board.

12.—(1) The Council may, upon such terms and conditions as they think fit and upon payment of such reasonable fee as may from time to time be prescribed by the Council, grant to any person a licence (in this Act referred to as a “works licence”) to construct, demolish, reconstruct, maintain, alter, improve, enlarge, or extend any tidal work in the harbour notwithstanding interference with public rights of navigation and other public rights by such works as constructed, demolished, reconstructed, maintained, altered, improved, enlarged or extended.

Licensing of works.

(2) Application for a works licence shall be made in writing to the Council and shall be accompanied by plans, sections and particulars of the works to which the application relates, and in granting any such licence the Council may require modifications in the plans, sections and particulars so submitted.

(3) If within three months from the date of the making of an application under subsection (2) of this section the Council do not grant a works licence in accordance with the application, they shall be deemed to have refused the application.

13.—(1) Subject to the provisions of section 33 (Crown rights) of this Act the Council may, upon such terms and conditions as they think fit and upon payment of such reasonable fee as may from time to time be prescribed by the Council, grant to any person a licence (in this Act referred to as a “dredging licence”) to dredge in any part of the harbour.

Licence to dredge.

(2) Application for a dredging licence shall be made in writing to the Council and shall be accompanied by plans, sections and particulars defining the nature and extent and manner of the operations to be carried out in the exercise of the powers granted by the licence and in granting any such licence the Council may

PART II
—cont.

require modifications in the plans, sections and particulars so submitted.

(3) If within three months from the date of the making of an application under subsection (2) of this section the Council do not grant a dredging licence in accordance with the application, they shall be deemed to have refused the application.

(4) The issue of a licence under this section shall not confer statutory authority for the carrying out of the works covered by the licence.

(5) Without prejudice to the rights of any person interested in any part of the bed of the harbour, the holder of a dredging licence may use, sell or otherwise dispose of or remove or deposit any materials taken up or collected by means of dredging in pursuance of a dredging licence as he thinks fit:

Provided that—

- (a) no such materials shall be laid down or deposited in any place within the harbour or the approaches thereto below the level of high water except in such position as may be approved and subject to such conditions or restrictions as may be imposed by the Council;
- (b) if it appears to the holder of the licence that the Council have unreasonably withheld their approval under paragraph (a) of this proviso or that any condition or restriction imposed by the Council under that paragraph is unreasonable, he may appeal to the Secretary of State whose decision shall be binding upon the parties.

Appeals to
Secretary of
State in respect
of works
licence or
dredging
licence.

14.—(1) Any applicant for a works licence or a dredging licence who is aggrieved by—

- (a) the refusal of the Council to grant the licence;
- (b) any terms or conditions upon which the licence is granted;
- (c) any modifications required by the Council in the plans, sections and particulars submitted by the applicant;

may, within twenty-eight days from the date upon which the Council notify the applicant of their decision or the date on which the Council are under subsection (3) of section 12 (Licensing of works) of this Act or subsection (3) of section 13 (Licence to dredge) of this Act deemed to have refused the application, appeal to the Secretary of State whose decision shall be binding upon the parties.

(2) A person who appeals to the Secretary of State under this section shall give to the Council notice of his appeal accompanied by a copy of his statement of appeal and the Council shall within twenty-eight days from the receipt of such notice be entitled to furnish the Secretary of State with their observations on the appeal.

(3) (a) On an appeal under this section the Secretary of State may—

PART II
—cont.

- (i) dismiss the appeal; or
- (ii) require the Council to grant the licence upon such terms and conditions as the Secretary of State may determine; or
- (iii) require the Council to approve the plans, sections and particulars without modifications or subject to such modifications as the Secretary of State may determine.

(b) The Council shall give effect to any requirement made by the Secretary of State under paragraph (a) of this subsection.

15.—(1) No person shall—

Restriction
on
construction
of works
and
dredging

(a) construct, demolish, reconstruct, maintain, alter, improve, enlarge, or extend any tidal work in the harbour unless he is licensed so to do by a works licence and except upon the terms and conditions (if any) upon which the licence is granted and in accordance with the plans, sections and particulars approved in pursuance of section 12 (Licensing of works) of this Act;

(b) dredge in the harbour unless he is licensed so to do by a dredging licence and except upon the terms and conditions (if any) upon which the licence is granted and in accordance with the plans, sections and particulars approved in pursuance of section 13 (Licence to dredge) of this Act.

(2) Any person who knowingly offends against the provisions of this section or who knowingly contravenes or fails to comply with any term or condition upon which a works licence or a dredging licence, as the case may be, is granted by the Council shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

(3) The Council may by notice require a person who contravenes the provisions of this section to remove or abate within a reasonable time specified in the notice any works to which the contravention relates and to restore the site thereof to its former condition and, if the person to whom the notice is given fails to comply with the notice, the Council may carry out the work required by the notice and recover the cost of so doing from that person.

16.—(1) The Council may provide, place, lay down, maintain, use and have moorings (including floating jetties or pontoons), buoys and like apparatus or facilities in the harbour.

Powers as to
moorings, etc.

(2) The Council may demand, receive and recover in respect of any vessel using any of the moorings, buoys and like apparatus or facilities provided by the Council under this section such reasonable charges as may from time to time be prescribed by the Council.

PART II
—cont.

(3) The Council may compound with any person with respect to the payment of the charges prescribed by the Council under this section.

(4) The Council may from time to time grant licences to any person to provide, place, lay down, maintain, use and have existing and future moorings, buoys and like apparatus or facilities in the harbour:

Provided that—

- (a) nothing in any such licence shall entitle a person to provide, place, lay down, maintain, use and have any mooring, buoy and like apparatus or facilities on land not owned or leased by him or by the Council or in which he has no appropriate interest;
- (b) the Council shall not refuse to grant a licence unless they are satisfied that the placing, laying down, maintenance or use of the moorings, buoys or like apparatus or facilities to which the application relates would constitute a danger to or interfere with the navigation of vessels in the harbour.

(5) Any licence granted under subsection (4) of this section shall be valid only for such period not exceeding three years commencing with its date as may be specified in the licence.

(6) The Council may charge a reasonable fee for granting a licence under subsection (4) of this section.

Obstruction
of moorings,
etc.

17.—(1) Any person who—

- (a) wilfully obstructs any person acting under the authority of the Council in providing, placing, laying down, maintaining, using or having moorings, buoys or like apparatus or facilities; or
- (b) wilfully pulls up or removes any moorings, buoys and like apparatus or facilities or any poles or stakes driven into the ground for the purpose of such moorings, buoys or like apparatus or facilities; or
- (c) without reasonable excuse causes a vessel to be moored except at a mooring, buoy or like apparatus or facility provided or licensed by the Council under section 16 (Powers as to moorings, etc.) of this Act or at a quay, jetty, slipway or other work; or
- (d) provides, places, lays down, maintains, uses or has any mooring, buoy or like apparatus or facility not provided or licensed by the Council under the said section of this Act;

shall be guilty of an offence and liable on summary conviction to a fine not exceeding fifty pounds.

(2) If any person contravenes paragraph (d) of subsection (1) of this section, the Council may remove the mooring, buoy or like apparatus or facility in question and recover from that person the expenses incurred in so doing.

PART II
—cont.

- 18.—(1) The Council may themselves do or make arrangements for the doing by any person of all or any of the following things:—
- (a) the provision, erection and maintenance of all such accommodation, houses, buildings, structures, erections, vehicles, plant, machinery, apparatus or equipment as the Council may think necessary or expedient for the following purposes of this section or the enjoyment of the harbour or any facilities provided for those purposes;
 - (b) the holding of exhibitions, shows, regattas, competitions, contests and other entertainments in or in connection with the harbour;
 - (c) the provision of hostels and other accommodation and facilities including baths, changing accommodation, lavatories and washhouses;
 - (d) the provision of accommodation for, and the provision of, meals and refreshments (including intoxicating liquor);
 - (e) the provision, improvement or maintenance of roads;
 - (f) the levying of charges for admission to, or the use of, any of the facilities provided under this Act:

Power to
arrange
exhibitions,
regattas, etc.

Provided that the Council shall not under paragraph (d) of this subsection provide accommodation, meals or refreshments except in so far as it appears to them that the existing facilities therefor are inadequate or unsatisfactory, either generally or as respects any description of accommodation, meals or refreshments as the case may be.

(2) For the removal of doubt, it is hereby declared that charges levied by the Council pursuant to paragraph (f) of subsection (1) of this section may be demanded subject to exemptions or compounding arrangements given, or made subject to such conditions, as the Council may from time to time think fit.

(3) The Council may enter into and carry into effect agreements or arrangements with any person for the provision and maintenance by that person of any works, facilities, supplies or services which may be desirable for or in connection with the carrying into effect of any of the purposes of this section and by any such agreement or arrangement may agree to defray or to make contributions towards expenses incurred by the person thereunder.

PART II
—cont.
1878 c. 76.

(4) For the purpose of section 7 of the Telegraph Act 1878 any work proposed to be carried out in pursuance of any agreement or arrangement entered into in accordance with subsection (3) of this section shall be deemed to be a work proposed to be done in the execution of an undertaking authorised by an Act of Parliament.

(5) The foregoing provisions of this section shall not authorise the Council or any person on land in which any other person has an interest, without the consent of the last-mentioned person, to do anything which apart from this section would be actionable at his suit by virtue of that interest.

(6) Nothing in this section shall be construed as excluding or limiting the application of any other enactment prohibiting, regulating or restricting the doing of any particular thing or as authorising the doing of that thing by or under agreements or arrangements made with the Council except in accordance with the provisions of that other enactment.

Life-saving
craft and
appliances.

19.—(1) For the purpose of saving life the Council may provide and maintain in or in the vicinity of the harbour—

- (a) boats or other vessels together with all necessary apparatus and equipment and buildings, structures, slipways and moorings for the operation or maintenance or accommodation of the same;
- (b) lifebuoys, lifelines and other life-saving appliances together with structures for the storage and safekeeping of such appliances.

(2) The Council may enter into arrangements with any person for the provision and maintenance of any of the facilities authorised by subsection (1) of this section.

Parking
places.

20. The Council may provide facilities (including shelters) within the harbour for the parking of vehicles and vessels and for that purpose may erect barricades or fencing with related offices, waiting rooms and other facilities and may make reasonable charges for the use of such facilities.

PART III FINANCIAL

Charges for
services or
facilities.

21. The Council may demand, take and recover such reasonable charges for services and facilities provided by them in the harbour as they may from time to time determine.

22.—(1) The several charges which the Council are for the time being authorised to demand, take and recover in respect of vessels or otherwise under this Act or any other enactment shall be payable before the removal from the harbour of any vessel in respect of which they are payable, and may be demanded, taken and recovered by such persons, at such places, at such times and under such conditions as the Council may from time to time specify in their published list of charges.

PART III
—cont.

Payment of
charges.

(2) An officer, as defined in the Customs and Excise Act 1952, 1952 c. 44. may refuse clearance of any vessel if he is satisfied that any charges payable to the Council in respect of that vessel or any goods therein have not been paid.

(3) Charges payable to the Council shall be payable by the owner or other person for the time being having charge of any vessel in relation to which the charges are payable.

(4) Where charges payable to the Council may be recovered by them from more than one person, the persons from whom they may be recovered shall be jointly and severally liable.

PART IV

MISCELLANEOUS AND GENERAL

23. Except where this Act provides to the contrary, the limits within which the Council shall exercise the functions conferred on them by virtue of this Act shall comprise the area which are described in Schedule 1 to this Act and the harbour estate.

Limits of
harbour.

24.—(1) Subject to the provisions of this Act, the Council may make byelaws for the good rule and government of the harbour and, without prejudice to the generality of the foregoing, the Council may make byelaws applicable within all or any part of the harbour for all or any of the following purposes:—

Byelaws as to
harbour.

- (a) for the purposes specified in section 83 of the Harbours, Docks and Piers Clauses Act 1847;
- (b) for regulating the exercise of the powers vested in the harbour master;
- (c) for regulating the use of pontoons, dry docks, slipways, cargo handling appliances, berths, piers, jetties, warehouses, buildings, parking places and other works and facilities provided by the Council;
- (d) for preventing damage or injury to any vessel, goods, vehicle, plant, machinery, property or persons within the harbour;

1847 c. 27.

PART IV
—cont.

- (e) for regulating the conduct of all persons in the harbour, not being members of a police force or officers or servants of the Crown whilst in the exercise of their duties as such;
- (f) for regulating the placing, maintenance and use of moorings;
- (g) for preventing and removing obstructions or impediments within the harbour;
- (h) for regulating the use of ferries within the harbour;
- (i) for regulating the launching of vessels within the harbour;
- (j) for regulating or preventing the use in the harbour or on board any vessel therein of fires, lights or any other equipment, tools or appliances which the Council consider involves a risk of fire;
- (k) for prohibiting the use of or regulating the movement, speed and parking of vehicles within the harbour;
- (l) for requiring the use of effectual silencers on vessels in the harbour;
- (m) for regulating vessels in the harbour and their entry into and departure from the harbour and, without prejudice to the generality of the foregoing, to prescribe rules for regulating the speed and manner of navigation and the lights and signals to be exhibited or made by, or for the benefit of, vessels using, navigating or mooring within the harbour;
- (n) for regulating the embarkation of persons into, or their disembarkation from, vessels within the harbour;
- (o) for prescribing the lights and signals to be exhibited or made—
 - (i) by vessels aground within the harbour;
 - (ii) by devices used for marking obstructions within the harbour;
 - (iii) at the entrance to any dock or at any wharf, pier or other work for assisting the navigation of vessels within the harbour;
- (p) for preventing or regulating the discharge by land or sea of any material or thing within the harbour or the approaches thereto;
- (q) for regulating fishing for marine creatures of any type and by whatever means from any pier, jetty, wharf, or other installation or structure of any kind within the harbour;

- (r) for regulating or preventing bathing, and for securing the protection of bathers, within the harbour;
- (s) for regulating or preventing the use by vehicles of the foreshore within the harbour; and
- (t) for, or in relation to, any of the purposes of this section, to confer powers on the harbour master to search any person (not being a member of a police force or an officer or servant of the Crown or of a public authority whilst in the exercise of his duties as such) or to enter and search any property (including vehicles and vessels) in the harbour.

(2) In this section “signals” includes sound signals, and different byelaws may be made under this section in relation to different classes of vessels.

(3) A person offending against any byelaws made by the Council pursuant to this section shall be guilty of an offence and be liable on summary conviction to a fine not exceeding fifty pounds.

(4) In its application in relation to the powers conferred by this section, section 236 (7) of the Local Government Act 1972 shall have effect as if after the words “The confirming authority may confirm” there were inserted the words “with or without modifications”:

Provided that where the Secretary of State proposes to make a modification which appears to him to be substantial he shall inform the Council and require them to take any steps he considers necessary for informing persons likely to be concerned with the modification, and shall not confirm the byelaws until such period has elapsed as he thinks reasonable for consideration of, and comment upon, the proposed modification by the Council and by other persons who have been informed of it.

25.—(1) In any proceedings for an offence under section 6 (Provision against danger to navigation), section 9 (Permanent lights on tidal works), subsection (1) (b) of section 15 (Restriction on construction of works and dredging) or subsection (1) (d) of section 17 (Obstruction of moorings, etc.) of this Act, it shall be a defence for the person charged to prove that he took all reasonable precautions and exercised all due diligence to avoid the commission of such an offence.

Defence available to persons charged with certain offences.

(2) If in any case the defence provided by subsection (1) of this section involves the allegation that the commission of the offence was due to the act or default of another person the person charged shall not, without leave of the court, be entitled to rely on that defence unless, within a period ending seven clear days before the hearing, he has served on the prosecutor a notice in writing giving such information identifying or assisting in the identification of that other person as was then in his possession.

PART IV
—cont.General
directions to
vessels.

26.—(1) The Council may, after consultation with the General Council of British Shipping and the pilotage authority, give a general direction for the purpose of promoting or securing conditions conducive to the ease, convenience or safety of navigation and the safety of persons and property in the harbour and, without prejudice to the generality of the foregoing, for any of the following purposes:—

- (a) for designating areas, routes or channels in the harbour which vessels are to use or refrain from using for movement, berthing or mooring;
- (b) for securing that vessels move only at certain times or during certain periods;
- (c) requiring the master of a vessel to give to the harbour master information relating to the vessel reasonably required by the harbour master for effecting any of the purposes of this subsection.

(2) A general direction may apply—

- (a) to all vessels or to a class of vessels designated in the direction; and
- (b) to the whole of the harbour or to a part designated in the direction; and
- (c) at all times or at times designated in the direction;

and every general direction shall specify the extent of its application in relation to the matters referred to in paragraphs (a), (b) and (c) of this subsection.

(3) The Council may, after such consultation as aforesaid, revoke or amend any general direction.

Publication
of general
directions.

27.—(1) Notice of the giving of a general direction and of any amendment or revocation of a general direction shall, except in an emergency, be published by the Council as soon as practicable once in Lloyd's List or some other newspaper specialising in shipping news and, if the notice relates to the giving or amendment of a direction, shall state a place at which copies thereof may be inspected and bought, and the price thereof.

(2) In an emergency, notice of the giving of a general direction or of the amendment or revocation of a general direction may be given in any manner considered by the harbour master to be appropriate.

Special
directions to
vessels.

28. A special direction under this section may be given by the harbour master to a vessel anywhere in the harbour, requiring it to comply with a requirement made in or under a general direction, and may be communicated in any manner considered by the harbour master to be appropriate.

29.—(1) Without prejudice to any other remedy available to the Council, if a special direction is not complied with within a reasonable time, the harbour master may put persons on board the vessel to carry out the direction or may otherwise cause the vessel to be handled in accordance with the direction.

PART IV
—cont.
Enforcement
of directions.

(2) If there is no one on board a vessel to comply with a special direction the harbour master may proceed as if the direction had been given and not complied with:

Provided that the powers of this section shall not be exercised—

(a) in relation to a vessel other than a barge or lighter unless, after reasonable inquiry has been made, the master cannot be found; or

(b) in relation to a barge or lighter unless it is obstructing or interfering with navigation.

(3) Expenses incurred by the Council in the exercise of the powers conferred by this section shall be recoverable by them as if they were a charge due to the Council in respect of the vessel.

30. The giving of a general direction or a special direction shall not diminish or in any other way affect the responsibility of the master of the vessel to which the direction is given in relation to his vessel, to persons on board, to its cargo or to any other person or property.

Master's
responsibility
in relation to
direction.

31.—(1) The master of a vessel who fails to comply with a general direction or a special direction shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds.

Failure to
comply with
directions.

(2) It shall be a defence to the master of a vessel charged with an offence under subsection (1) of this section that he had reasonable ground for believing that non-compliance with the direction in question was necessary to secure the safety of any vessel or to prevent injury to any person or damage to any vessel or cargo or that in the circumstances compliance was impracticable.

32.—(1) If a vehicle is left without the permission of the Council—

Removal of
vehicles, etc.

(a) in any place within the harbour where it is likely to obstruct or interfere with the use of the harbour; or

(b) in any part of the harbour where the parking of vehicles is prohibited by notice posted by the Council;

the Council may remove the vehicle, or cause it to be removed.

(2) Any notice posted under paragraph (b) of subsection (1) of this section shall be conspicuously posted in or close to the place to which it relates.

PART IV
—cont.

(3) Where the Council in exercise of the powers of this section remove a vehicle, or cause it to be removed, the expense of and incidental to the removal shall be recoverable by the Council from any person responsible.

1967 c. 76.

(4) For the purposes of subsection (3) of this section "person responsible" shall have the same meaning as in section 52 (3) of the Road Traffic Regulation Act 1967.

S.I. 1971/450.

(5) If the Council in exercise of the powers of this section remove a vehicle to a place not readily visible from the place whence it is so removed they shall, if and as soon as it is reasonably practicable to do so, send to the person for the time being registered as the owner of the vehicle for the purposes of the Road Vehicles (Registration and Licensing) Regulations 1971 or any other regulations having the like effect for the time being in force, at his last known address, his registered address or the address where the vehicle is ordinarily kept, notice that they have exercised the powers of this section and of the place to which the vehicle has been removed.

(6) A notice stating the general effect of subsection (1) of this section shall be displayed in a prominent position at each place where a road accessible to vehicles enters any part of the harbour.

Crown rights.

33. Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained authorises any person to take, use or in any manner interfere with any portion of the shore or bed of the sea belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose.

Saving for
Trinity
House.

34. None of the provisions of this Act shall extend or be construed to extend, prejudice or derogate from any of the rights, duties or privileges of Trinity House.

Saving for
Coast
Protection
Act 1949.
1949 c. 74.

35. Nothing in this Act shall affect the application to any operation of sections 18 and 34 to 36 of the Coast Protection Act 1949 (which require the consent of the Secretary of State to certain operations and contain other provisions for the safety of navigation).

Protective
provisions.

36. The provisions of Schedule 2 to this Act shall have effect for protecting the interests of the persons therein specified.

Repeals.

37. The enactments specified in Schedule 3 to this Act (which include enactments which were spent or obsolete before the passing of this Act) are hereby repealed to the extent that they are applicable to the harbour, or any part thereof, and to the extent specified in column 3 of that Schedule.

SCHEDULES

SCHEDULE 1

Section 23.

LIMITS OF HARBOUR

An area of 52.70 hectares (130.25 acres) or thereabouts, being so much of Barry Harbour and land adjacent thereto, situated partly in the borough of Vale of Glamorgan and partly below the level of low-water mark in the Bristol Channel, as is comprised within an imaginary line commencing at a point (hereinafter referred to as "the point of commencement") located at the low-water mark (National Grid Reference 31/1036 6594) at the southern tip of Cold Knap Point lying 375 metres south of the Old Watch House, thence proceeding in a northerly direction for a distance of 100 metres, to a point 110 metres measured in a southerly direction from the southernmost corner of Cold Knap Cloak Rooms, thence in a north-easterly direction for a distance of 130 metres, along the edge of the grass top of bedded rocks to a point 70 metres east of the easternmost corner of Cold Knap Cloak Rooms aforesaid, thence continuing in a westerly direction along the edge of the grass top of bedded rocks for a distance of 70 metres to a point at the south end of Watch House Bay Promenade, thence along the western boundary of the beach of Watch House Bay to a point 10 metres west of Old Watch House, thence in a north-easterly direction to a point 10 metres north of the existing outfall, below premises known as "White House Cottage", thence in a north-easterly, northerly and north-westerly direction along the eastern boundaries of the dwelling-houses known respectively as White House Cottage and Numbers 5, 3 and 1 Cold Knap Way to a boundary post situated in the garden of Number 1 Cold Knap Way, thence in a north-easterly direction along the south-eastern boundary of the premises known as 64 The Parade and the top of the cliff forming the boundary of the Parade Gardens to Storehouse Point, thence to a point on the southern boundary of Harbour Road 50 metres north of Storehouse Point, thence along the southern boundary of Harbour Road to the western abutment of the Harbour Road Bridge, thence in a south-westerly direction 2 metres parallel to and on the eastern side of the top of the stone pitching for a distance of 260 metres, thence along the line of the top of the said pitching to the commencement of Yorke Rock Breakwater, thence in a direction due south for a distance of 20 metres, thence following the boundary of the premises known as Friar's Point House for a distance of 180 metres, thence in a south-easterly direction along the edge of the grass top of bedded rocks to a point at Friar's Point, lying 450 metres in a southerly direction from Friar's Point House, thence due true south for a distance of 100 metres to a point on the low-water mark for medium tides at Friar's Point (National Grid Reference 31/1111 6587), thence in a westerly direction for a distance of 750 metres to the point of commencement.

Section 36.

SCHEDULE 2

PROTECTIVE PROVISIONS

PART 1

FOR PROTECTION OF THE CENTRAL ELECTRICITY GENERATING
BOARD AND THE SOUTH WALES ELECTRICITY BOARD

For the protection of the undertakers the provisions of this Part of this Schedule shall, unless otherwise agreed in writing between the Council and the undertakers, apply and have effect—

1. In this Part of this Schedule—

“electricity work” means any electric line, apparatus, building, structure or other work of any nature belonging to or maintained by the undertakers;

“the undertakers” means the Central Electricity Generating Board and the South Wales Electricity Board, or either of them, as the case may be.

2. The powers conferred on the Council by paragraph (a) of subsection (2) of section 4 (General powers of Council in respect of harbour) of this Act shall not without the consent of the undertakers (which consent shall not be unreasonably withheld) apply to any electricity work.

3. In exercising the powers of section 4 (General powers of Council in respect of harbour), section 5 (Power to provide boating facilities), section 18 (Power to arrange exhibitions, regattas, etc.) and section 20 (Parking places) of this Act, the Council, or any person acting by arrangement with the Council, shall not without the consent of the undertakers (which consent shall not be unreasonably withheld) damage, injuriously affect or interfere with any electricity work and the said powers shall be so exercised as not to render unreasonably inconvenient the access to any electricity work.

4. Nothing in section 15 (Restriction on construction of works and dredging) of this Act shall apply to the construction, demolition, reconstruction, maintenance, alteration, improvement, enlargement or extension by the undertakers of any electricity work from time to time authorised under or by virtue of any enactment or any consent, wayleave or other instrument given or made under any enactment or make it unlawful for the undertakers to carry out any work not so authorised, or any dredging necessary in case of emergency for the protection, or to ensure the efficient operation, of any electricity work.

PART 2

FOR PROTECTION OF WELSH WATER AUTHORITY

For the protection of the water authority the provisions of this Part of this Schedule shall, unless otherwise agreed in writing between the Council and the water authority, apply and have effect—

1. In this Part of this Schedule—

SCH. 2
—cont.

“protected work” means any work, building, structure, plant, appliance, main, pipe or other apparatus owned or maintained by, or under the control of, the water authority for the purpose of any of their statutory functions;

“water authority” means the Welsh Water Authority.

2. The powers conferred on the Council by section 4 (General powers of Council in respect of harbour) of this Act shall not without the consent of the water authority (which consent shall not be unreasonably withheld) apply to a protected work.

3. In exercising the powers of section 4 (General powers of Council in respect of harbour), section 5 (Power to provide boating facilities), section 11 (Power to secure sufficient waterway and sell materials), section 12 (Licensing of works), section 13 (Licence to dredge), subsection (3) of section 15 (Restriction on construction of works and dredging), section 18 (Power to arrange exhibitions, regattas, etc.) and section 20 (Parking places) of this Act, the Council or any person acting by arrangement with the Council, shall not without the consent of the water authority (which consent shall not be unreasonably withheld) damage, injuriously affect or interfere with a protected work and the said powers shall be so exercised as not to render unreasonably inconvenient the access to a protected work.

4. Nothing in section 15 (Restriction on construction of works and dredging) of this Act shall apply to the construction, demolition, reconstruction, maintenance, alteration, improvement, enlargement or extension by the water authority of a protected work from time to time authorised under or by virtue of any enactment or any consent, wayleave or other instrument given or made under any enactment or make it unlawful for the water authority to carry out any work not so authorised, or any dredging necessary in case of emergency for the protection, or to ensure the efficient operation, of a protected work.

5. Nothing in the relevant provisions of this Act shall relieve the Council or anyone acting under their licence from liability for damage caused by them to a protected work and in this paragraph “relevant provisions” means—

section 4 (General powers of Council in respect of harbour);

section 11 (Power to secure sufficient waterway and sell materials);

section 12 (Licensing of works);

subsection (3) of section 15 (Restriction on construction of works and dredging).

6. If the water authority have reasonable grounds for believing that a protected work is likely to be interfered with or damaged by reason of the construction of any work authorised by or under this Act or by the carrying out of any dredging operation they may carry out such protective works as may be agreed between

SCH. 2
—cont.

the Council and the water authority or, in default of agreement, as may be settled by arbitration and recover the reasonable cost thereof from the Council and any case for arbitration arising under this paragraph shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party, after notice in writing to the other, by the President for the time being of the Institution of Civil Engineers.

7. The powers conferred by section 32 (Removal of vehicles, etc.) of this Act shall not be exercised in relation to any vehicle used by the water authority in the performance of their statutory functions.

8. Subject to the provisions of this Part of this Schedule, nothing in this Act shall affect prejudicially any statutory or other rights, powers or privileges vested in, or enjoyed by, the water authority at the date of the passing of this Act and the water authority shall continue to hold, exercise and enjoy those rights, powers and privileges as if this Act had not been passed.

SCHEDULE 3
ENACTMENTS REPEALED

Section 37.

Session and chapter	Short title	Extent of repeal
47 & 48 Vict. c. cclvii	Barry Dock and Railways Act 1884	The whole Act.
49 Vict. c. xxxix ...	Barry Dock and Railways Act 1886	The whole Act.
54 & 55 Vict. c. clxxxiv	Barry Dock and Railways Act 1891	The whole Act.
57 & 58 Vict. c. clxvii	Barry Railway Act 1894 ...	The whole Act.
59 & 60 Vict. c. cxciii	Barry Railway Act 1896 ...	The whole Act.

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CHAPTER xvii

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Section

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